RETAIL RESTAURANT LEASE

Aspen Bench Marketplace — Suite 105

between BEEHIVE REALTY TRUST, LLC, as Landlord,
and SALTFLATS TACOS & MEZCAL CO., LLC, as Tenant

This Retail Restaurant Lease (the "Lease") is entered into as of the Effective Date set forth in Article 1, by and between Landlord and Tenant. In consideration of the mutual covenants set forth herein, and intending to be legally bound, Landlord and Tenant agree as follows.

ARTICLE 1. KEY DEFINED TERMS

Defined Term	Entry
Effective Date	July 17, 2026.
Landlord	Beehive Realty Trust, LLC, a Utah limited liability company.
Tenant	Saltflats Tacos & Mezcal Co., LLC, a Utah limited liability company.
Shopping Center	The retail and dining center commonly known as Aspen Bench Marketplace, located at 6225 South Wasatch Boulevard, Holladay, Utah 84121, consisting of approximately 34,500 RSF of leasable area together with related parking, drives, landscaping, common areas, pylon signage, and the loading drive shown on Exhibit A.
Premises	End-cap Suite 105 of the Shopping Center, consisting of approximately 3,450 rentable square feet of interior space, together with the exclusive use of an approximately 850 SF outdoor dining patio depicted on Exhibit A.
Permitted Use	Operation of a sit-down restaurant featuring Mexican and Latin American cuisine with a particular emphasis on tacos, regional specialties, mezcal- and tequila-forward cocktails, beer, and wine, together with ancillary takeout, delivery, and limited retail sale of branded merchandise. No other use is permitted without Landlord's prior written consent.
Trade Name	"Saltflats Tacos & Mezcal" or such other trade name as may be approved in writing by Landlord, such approval not to be unreasonably withheld.
Commencement Date	The earlier of (a) August 1, 2026, or (b) the date Tenant first opens the Premises to the public for business.
Rent Commencement Date	December 1, 2026 (four (4) months after the Commencement Date).
Term	One hundred twenty (120) full calendar months from the Rent Commencement Date, expiring November 30, 2036 (the "Expiration Date"), unless sooner terminated or extended as provided herein.
Base Rent	As set forth in the schedule in Section 2.2.

Percentage Rent	Six percent (6%) of Gross Sales in excess of the Natural Breakpoint, as defined and payable per Section 2.4.
Abatement Period	August 1, 2026 through November 30, 2026 (Base Rent only).
Estimated CAM, Tax, and Insurance Charges	$14.00 per RSF per year for calendar year 2027 ($4,025.00 per month), payable as Estimated NNN/CAM monthly and reconciled annually under Article 3.
Tenant Improvement Allowance	$50.00 per RSF ($172,500.00) payable in arrears against lien-waiver-supported invoices, as set forth in Exhibit G.
Security Deposit	$25,000.00 (cash).
Personal Guaranty	Limited Personal Guaranty from Camila V. Esquivel in the form attached as Exhibit H (rolling 18 months of Rent, burning off at month 60 if no Default).
Tenant Proportionate Share	10.00% (3,450 / 34,500), calculated based on RSF leased to all tenants.
Brokers	Tenant Broker: Wasatch Retail Advisors, LLC. Landlord Broker: Beehive Realty Trust, LLC (in-house).
Tenant Notice Address	Saltflats Tacos & Mezcal Co., LLC, Attn: Camila V. Esquivel, Managing Partner, Suite 105, 6225 South Wasatch Boulevard, Holladay, UT 84121; courtesy email copy to cesquivel@saltflatstacos.example.
Landlord Notice Address	Beehive Realty Trust, LLC, Attn: Lease Administration, 175 East 400 South, Suite 900, Salt Lake City, UT 84111; courtesy email copy to leases@beehiverealtytrust.example.
Required Co-Tenant	Wildwood Market, the specialty grocer occupying the anchor premises of the Shopping Center (or a Comparable Replacement under Section 5.10).
Exclusive Use	As set forth in Section 5.9.
Renewal	One (1) option to renew for five (5) years at Fair Market Rent, per Article 27.
Exhibits	Exhibit A (Site Plan & Premises); Exhibit B (Surrender Requirements); Exhibit C (Rules and Prohibited Uses); Exhibit D (Tenant Contact Information); Exhibit E (Sign Specifications); Exhibit F (Confirmation of Commencement Date); Exhibit G (Work Letter & Tenant Improvement Allowance); Exhibit H (Limited Personal Guaranty); Exhibit I (Utah-Specific Provisions); Exhibit L (Exclusive Use & Continuous Operation); Exhibit M (Co-Tenancy). All other exhibits referenced in the Beehive standard form are intentionally omitted as inapplicable.

ARTICLE 2. PREMISES; RENT; PERCENTAGE RENT

2.1 Grant. Landlord leases the Premises (including exclusive use of the patio depicted on Exhibit A) to Tenant, and Tenant leases the Premises from Landlord, for the Term, subject to this Lease.

2.2 Base Rent Schedule. Tenant shall pay Base Rent in monthly installments, in advance, on the first day of each calendar month, without demand, deduction, abatement, counterclaim, or setoff, except as expressly provided herein.

Lease Period	Months	Rate per RSF	Monthly Base Rent	Annual Base Rent
Aug 1, 2026 – Nov 30, 2026	1–4 (abated)	$42.00 (abated)	$0.00 (abated)	—
Dec 1, 2026 – Nov 30, 2028	5–28	$42.00	$12,075.00	$144,900.00
Dec 1, 2028 – Nov 30, 2030	29–52	$44.50	$12,793.75	$153,525.00
Dec 1, 2030 – Nov 30, 2032	53–76	$47.00	$13,512.50	$162,150.00
Dec 1, 2032 – Nov 30, 2034	77–100	$49.50	$14,231.25	$170,775.00
Dec 1, 2034 – Nov 30, 2036	101–120	$52.00	$14,950.00	$179,400.00

2.3 NNN/CAM Charges. Tenant shall pay monthly Estimated CAM, Tax, and Insurance Charges concurrently with Base Rent, subject to annual reconciliation under Article 3.

2.4 Percentage Rent. Tenant shall pay Percentage Rent equal to six percent (6%) of Gross Sales for each Lease Year in excess of the Natural Breakpoint for that Lease Year. The "Natural Breakpoint" for each Lease Year is the annual Base Rent then in effect divided by 0.06 (e.g., for Lease Year 1, the Natural Breakpoint is $2,415,000). "Gross Sales" means the gross dollar amount of all sales of food, beverages, alcohol, merchandise, gift cards (when redeemed), takeout, delivery (including third-party delivery, recognized at the gross price collected by the delivery platform), and catering, less customary exclusions for sales tax, returns, employee meals (at cost), bona fide gift card sales prior to redemption, and amounts paid to third-party tipping pools. Tenant shall remit Percentage Rent monthly within twenty (20) days after month end (based on month-to-date Gross Sales above the cumulative Natural Breakpoint), reconciled annually within ninety (90) days after each Lease Year. Tenant shall maintain customary point-of-sale, accounting, and audit records for at least three (3) years, and Landlord may audit Tenant's records once per Lease Year by a CPA on a non-contingency basis; if the audit shows an understatement of Gross Sales of more than three percent (3%), Tenant shall pay the deficiency plus Landlord's reasonable audit costs up to $7,500.

2.5 Abatement. During the Abatement Period, Base Rent (only) shall be abated. Estimated CAM/Tax/Insurance and utilities remain payable. If a monetary Default results in termination of this Lease or Tenant's right of possession, the unamortized portion of the abated Base Rent shall, to the extent permitted by law, become immediately due as additional damages.

2.6 Required Payments at Execution. Within five (5) business days after the Effective Date, Tenant shall deliver (a) the first monthly installment of Base Rent due after the Abatement Period ($12,075.00); (b) the first monthly installment of Estimated CAM/Tax/Insurance ($4,025.00); (c) the Security Deposit ($25,000.00); (d) the executed Limited Personal Guaranty in the form of Exhibit H; and (e) certificates of insurance compliant with Article 11.

2.7 Payment Method; Late Charge; Interest. Rent shall be paid by ACH. Rent not paid within five (5) days after due shall bear a late charge of five percent (5%); Rent not paid within thirty (30) days after due shall bear interest at the lesser of ten percent (10%) per annum or the maximum lawful rate.

2.8 Security Deposit. The Security Deposit secures Tenant's performance. Landlord may apply it to cure a Default or reimburse Landlord. Tenant shall replenish any amount applied within ten (10) days after demand. Provided no Default has occurred during the prior twelve months, the Security Deposit shall be returned within sixty (60) days after the later of the Expiration Date or surrender.

ARTICLE 3. CAM, TAXES, INSURANCE, AND MARKETING

3.1 Common Area Maintenance ("CAM"). Landlord shall maintain the Shopping Center common areas, including parking areas, drives, sidewalks, landscaping, irrigation, snow and ice removal, lighting, pylon and Center monument signs, common-area trash compactors, common-area restrooms (if any), security cameras of the common areas, common-area utilities, and routine repairs and replacements to the foregoing. CAM costs include the foregoing plus a Landlord administrative fee equal to fifteen percent (15%) of the foregoing.

3.2 Real Property Taxes. Tenant shall reimburse Landlord, as Additional Rent, for Tenant Proportionate Share of all real property taxes and assessments levied against the Shopping Center.

3.3 Insurance. Tenant shall reimburse Landlord, as Additional Rent, for Tenant Proportionate Share of Landlord's property and liability insurance for the Shopping Center.

3.4 Marketing Fund. Tenant shall contribute, as Additional Rent, $0.75 per RSF per year ($2,587.50/year) to the Aspen Bench Marketplace Marketing Fund, used by Landlord for digital marketing, seasonal promotions, signage refresh, holiday programming, and tenant-shared media. Landlord shall provide a summary of expenditures upon Tenant's written request.

3.5 Capital Items. CAM excludes capital items except (a) those intended to reduce CAM, (b) those required by Laws first enacted or applicable to the Shopping Center after the Effective Date, and (c) those for energy efficiency, in each case amortized over their useful lives at a commercially reasonable interest rate.

3.6 CAM Exclusions. CAM excludes leasing commissions; marketing or build-out costs for other tenants; principal and interest on debt; depreciation; costs reimbursed by insurance or third parties; costs caused by Landlord's gross negligence or willful misconduct; costs to remediate hazardous materials present before the Effective Date and not caused by Tenant; and Landlord's general corporate overhead beyond the administrative fee in Section 3.1.

3.7 Reconciliation; Audit. Within one hundred fifty (150) days after each calendar year, Landlord shall deliver a CAM/Tax/Insurance reconciliation. Underpayments are due within thirty (30) days; overpayments are credited or refunded. Tenant may audit by written notice within sixty (60) days after the reconciliation, by a CPA on a non-contingency basis, completed within forty-five (45) days. If overcharge exceeds five percent (5%), Landlord shall reimburse audit costs up to $5,000.

3.8 CAM Cap. Controllable CAM (excluding taxes, insurance, utilities, snow/ice removal, security, and capital items) shall not increase by more than five percent (5%) per year on a cumulative, compounded basis.

ARTICLE 4. UTILITIES

4.1 Direct Service. Electricity, natural gas, water, sewer, and telecommunications serving the Premises are separately metered or directly billable to Tenant. Tenant shall open and maintain its own accounts and pay all charges directly.

4.2 Grease Trap and Hood Exhaust. Tenant shall, at its sole cost, install (subject to Article 13), maintain, clean, and pump out an in-ground or under-counter grease interceptor sized to its operations and meeting Holladay/Salt Lake County requirements, with pumping at least monthly (or more frequently as required) and written records delivered to Landlord on request. Tenant shall maintain its Type I hood exhaust, make-up air, fire-suppression (Ansul or equivalent) system, and rooftop exhaust fan, including hood cleaning by a licensed contractor at least quarterly. Tenant shall provide annual inspection certificates to Landlord.

4.3 Interruption. No interruption of utility service constitutes eviction or relieves Tenant of payment, except that if an interruption caused by Landlord's negligence continues for more than three (3) consecutive business days and materially prevents Tenant from operating, Tenant shall receive a proportionate Base Rent abatement for actual loss of use as Tenant's sole remedy.

ARTICLE 5. USE; OPERATIONS; EXCLUSIVES; CO-TENANCY

5.1 Permitted Use. Tenant shall use the Premises only for the Permitted Use and the Trade Name, and shall comply with all Laws, the certificate of occupancy, health department requirements, Holladay City zoning, and recorded restrictions.

5.2 Continuous Operation. Tenant shall continuously operate the Premises for the Permitted Use during the Required Operating Hours specified in Exhibit L beginning on the Commencement Date and continuing throughout the Term. "Going dark" is a Default. Tenant may close (a) for up to fifteen (15) consecutive days for remodeling on Landlord's prior written consent (not to be unreasonably withheld), (b) for ordinary holidays observed by comparable restaurants in the Wasatch Front market, and (c) due to Force Majeure for so long as the cause continues.

5.3 Required Operating Hours. Set forth in Exhibit L. At a minimum, Tenant shall be open Tuesday through Sunday from 11:00 a.m. to 9:00 p.m. and may be closed on Mondays.

5.4 Quality Standard. Tenant shall operate the Premises consistent with the standards of comparable upper-casual / "fast-fine" restaurants in the Wasatch Front market, including with respect to ingredients, cleanliness, service, decor, and uniforms.

5.5 Patio. Tenant's exclusive use of the patio is subject to Holladay City zoning, building, health, and noise ordinances; the Aspen Bench Marketplace patio design standards; and Section 5.6. Patio operating hours shall not extend past 10:00 p.m. Sunday through Thursday or 11:00 p.m. Friday and Saturday, except with Landlord's and Holladay City's consent.

5.6 Music; Entertainment. Background music is permitted indoors and on the patio at conversational levels. Live amplified music and DJ programming are permitted indoors with Landlord's consent not to be unreasonably withheld, and on the patio only with Landlord's prior written consent and only at events not exceeding eight (8) per Lease Year, ending by 9:00 p.m. Tenant shall comply with all noise ordinances.

5.7 Alcohol; Liquor License. Tenant shall obtain and maintain in good standing all licenses required by the Utah Department of Alcoholic Beverage Services ("DABS") for its operations, including a full-service or limited-service restaurant license appropriate to its menu mix. Tenant shall comply with all DABS regulations, including the licensee's responsibilities relating to dining/alcohol ratios, food primary service, signage, and minor access. Landlord shall reasonably cooperate (without cost or liability to Landlord) with Tenant's licensing applications. Loss, suspension, or revocation of the license that is not cured or replaced within sixty (60) days is a Default.

5.8 Trash; Pests; Hygiene. Tenant shall arrange and pay for daily trash removal, recycling, and used cooking oil pickup. Tenant shall use the rear loading drive and Center trash enclosure as designated; no trash, grease, or empty containers shall be staged in the common areas at any time. Tenant shall maintain a pest control contract with a licensed exterminator, with at least monthly visits.

5.9 Exclusive Use. Subject to existing leases listed in Exhibit L, Landlord shall not lease any other premises within the Shopping Center to any restaurant whose primary menu concept (defined as more than 35% of food revenue) is Mexican, Tex-Mex, Latin American, or taqueria-style cuisine, or whose primary beverage concept is mezcal- or tequila-forward. Customary side items at other restaurants (e.g., a taco or quesadilla on a broader menu) do not violate this exclusive. Landlord's violation is governed by Exhibit L.

5.10 Co-Tenancy. If at any time after the Rent Commencement Date (a) the Required Co-Tenant ceases operating in the Shopping Center for more than ninety (90) consecutive days and is not replaced within twelve (12) months by a Comparable Replacement, or (b) the occupancy of the Shopping Center (measured by RSF) drops below seventy percent (70%) for more than sixty (60) consecutive days, then Tenant's remedies set forth in Exhibit M shall apply, including alternative rent and a conditional termination right.

ARTICLE 6. CONDITION AND DELIVERY

6.1 Delivery. Landlord shall deliver the Premises in "warm vanilla shell" condition as described in Exhibit G, with HVAC, electrical (200-amp 3-phase), gas, water, sewer, restrooms, demising walls, and one 8-foot grease line installed and stubbed to the kitchen area as designated by Tenant. Tenant accepts the Premises "AS IS" except for the foregoing.

6.2 Tenant's Work. Tenant shall perform Tenant's Work — including kitchen build-out, hood and make-up air, fire-suppression upgrades, grease interceptor sizing-up if needed, dining room finishes, bar, FF&E, signage, and patio improvements — at Tenant's sole cost (subject to the Tenant Improvement Allowance under Exhibit G).

6.3 Allowance. Tenant Improvement Allowance is $50.00 per RSF ($172,500.00 total), payable in arrears against paid invoices and lien waivers, with the procedures in Exhibit G.

6.4 Permits. Tenant shall obtain all permits for Tenant's Work and operations, including building, health, sign, and liquor permits. Landlord shall reasonably cooperate without cost or liability to Landlord.

6.5 Outside Date. If Landlord fails to deliver the Premises in the required condition by September 30, 2026 (the "Outside Date") for reasons other than Tenant Delay or Force Majeure, Tenant may terminate this Lease by written notice within thirty (30) days after the Outside Date, and Landlord shall promptly refund all sums prepaid by Tenant.

6.6 Confirmation. Within ten (10) days after Landlord's delivery, the parties shall execute a Confirmation of Commencement Date in the form of Exhibit F.

ARTICLE 7. SUBORDINATION; SNDA; ESTOPPEL

7.1 Subordination. This Lease is subordinate to all current and future mortgages and ground leases on the Shopping Center, provided that Tenant's subordination to any future superior interest is conditioned on Tenant receiving a commercially reasonable subordination, non-disturbance, and attornment agreement from the holder.

7.2 Estoppel. Tenant shall deliver estoppel certificates within ten (10) business days after request.

ARTICLE 8. ASSIGNMENT AND SUBLETTING

8.1 Consent. Tenant shall not assign this Lease, sublet any portion of the Premises, mortgage or pledge its leasehold interest, or permit any transfer by operation of law, merger, change of control, or sale of substantially all assets, without Landlord's prior written consent, not to be unreasonably withheld for transferees that meet Landlord's reasonable financial, operational, and restaurant-experience criteria.

8.2 Recapture. If Tenant requests consent to assign this Lease or sublet more than fifty percent (50%) of the Premises, Landlord may instead elect to terminate this Lease as to the affected space; Tenant may rescind the transfer request within ten (10) business days after recapture notice.

8.3 Excess Consideration. After deducting reasonable and customary transfer costs (including unamortized Tenant Improvements), fifty percent (50%) of any excess transfer consideration is payable to Landlord.

8.4 Permitted Transfers. Tenant may transfer to an Affiliate or to a surviving entity in a sale of substantially all assets without consent, upon fifteen (15) days' notice, provided (a) the use, Trade Name, and quality standard are maintained; (b) the transferee's tangible net worth is not less than Tenant's tangible net worth as of the Effective Date; and (c) Tenant and Guarantor remain liable.

8.5 No Release. No transfer releases Tenant or Guarantor unless Landlord expressly agrees in writing.

ARTICLE 9. ENVIRONMENTAL

9.1 Restriction. Tenant shall not generate, store, use, treat, transport, release, or dispose of Hazardous Materials at the Shopping Center, except (a) de minimis office and cleaning supplies and (b) cooking oils, cleaning chemicals, refrigerants, and CO_2 ordinarily used in restaurant operations, in each case used and stored in compliance with Laws.

9.2 Compliance; Notice. Tenant shall comply with all Environmental Laws, the food code, refrigerant-management rules, and shall promptly notify Landlord of any spill, release, regulatory notice, or violation.

9.3 Remediation. Tenant shall, at its sole cost, remediate any release caused, contributed to, or exacerbated by Tenant or any Tenant party.

9.4 Grease and Cooking Oils. Tenant's grease, used cooking oils, and grease interceptor maintenance are governed by Section 4.2 and the surrender obligations of Exhibit B.

ARTICLE 10. LANDLORD INSURANCE

Landlord shall maintain commercial property insurance for the Shopping Center, commercial general liability insurance, rental value insurance, and such other insurance as Landlord or its lender deems appropriate; the cost is reimbursable by Tenant under Article 3 to the extent of Tenant Proportionate Share.

ARTICLE 11. TENANT INSURANCE

11.1 Required Policies. Tenant shall maintain the following insurance throughout the Term:

Policy	Minimum Limit / Notes
Commercial General Liability	$2,000,000 per occurrence / $5,000,000 aggregate.
Liquor Liability / Dram Shop	$2,000,000 per occurrence / $5,000,000 aggregate, dedicated and at no time eroded by other claims.
Commercial Property (Special Form)	Full replacement cost of Tenant's personal property, FF&E, kitchen equipment, leasehold improvements, and inventory.
Business Interruption / Extra Expense	Twelve (12) months of fixed and variable expenses, including Base Rent and Percentage Rent at projected levels.
Workers' Compensation / Employer's Liability	Statutory; employer's liability $1,000,000.
Commercial Auto	$1,000,000 (any auto), if any vehicle is used in Tenant's business.
Umbrella / Excess	$5,000,000 each occurrence/aggregate over CGL, Liquor, Auto, EL.

11.2 Additional Insureds. Landlord and its lender shall be named as additional insureds on CGL, Liquor, Auto, and Umbrella policies on a primary and noncontributory basis.

11.3 Certificates. Tenant shall deliver certificates of insurance and required endorsements before the Commencement Date and at least thirty (30) days before each policy expiration.

ARTICLE 12. WAIVER OF SUBROGATION

Landlord and Tenant waive claims against each other for losses to the extent covered, or required to be covered, by the property insurance policies maintained or required under this Lease.

ARTICLE 13. ALTERATIONS

13.1 Consent. Tenant shall not make alterations, additions, or improvements without Landlord's prior written consent, not to be unreasonably withheld for interior non-structural alterations. Tenant shall deliver plans, permits, contractor insurance certificates, lien waivers, and as-built drawings.

13.2 Refresh Obligation. Tenant shall refresh paint, finishes, and customer-facing FF&E as needed to maintain the quality standard of Section 5.4, and shall complete a "mid-term refresh" of paint, finishes, and patio furniture between months 54 and 66 of the Term at Tenant's sole cost.

13.3 Removal at Surrender. At consent, Landlord designates removal. Kitchen equipment, hood, walk-ins, FF&E, bar, signage, low-voltage cabling, and patio furniture are Tenant property and shall be removed at surrender.

ARTICLE 14. PROPERTY; TRADE FIXTURES

Trade fixtures, FF&E, kitchen equipment, walk-in coolers and freezers (whether attached or not), bar equipment, POS, low-voltage cabling, and signage remain Tenant's property and shall be removed at the Expiration Date with restoration of any damage.

ARTICLE 15. REPAIRS AND MAINTENANCE

15.1 Tenant Obligations. Tenant shall maintain in good condition and repair: the interior of the Premises and patio; the kitchen, hood, make-up air, exhaust fan, fire-suppression system; refrigeration and walk-ins; grease interceptor; all utility systems from the point of entry to the Premises (electrical, gas, water, sewer); plumbing and fixtures within the Premises; doors, windows, glass; interior signage; storefront glass and door hardware; and the patio surface, railings, heaters, and furnishings.

15.2 Landlord Obligations. Landlord shall maintain the structural elements, foundation, exterior load-bearing walls, roof structure and membrane, common areas, common-area utilities, parking, sidewalks, landscaping, irrigation, and pylon signage, with costs included in CAM to the extent permitted under Article 3.

15.3 Service Contracts. Tenant shall maintain commercially reasonable contracts with licensed and insured contractors for (a) HVAC, (b) hood cleaning (quarterly), (c) fire-suppression and fire-alarm inspection and testing (annual), (d) grease interceptor pumping (monthly minimum), (e) refrigeration, and (f) pest control (monthly).

15.4 Tenant-Caused Damage. Tenant shall pay for repairs arising from its negligence, misuse, or willful misconduct, except to the extent barred by Article 12.

ARTICLE 16. ACCESS

Landlord and its representatives may access the Premises at reasonable times on at least twenty-four (24) hours' prior notice (except in emergencies), to inspect, perform Landlord's repairs, show the Premises, or exercise other rights. Health-department, fire-marshal, and DABS inspections are not covered by this Article and shall be cooperated with by Tenant in the ordinary course.

ARTICLE 17. INDEMNIFICATION; LIMITATION OF LIABILITY

17.1 Tenant Indemnity. Tenant shall indemnify, defend, and hold harmless Landlord and its affiliates, members, managers, officers, employees, agents, and lenders from losses arising out of (a) Tenant's Default; (b) the negligence or willful misconduct of Tenant or any Tenant party; (c) Tenant's use, occupancy, or operations at the Premises and patio (including the service of alcohol); (d) any Hazardous Materials or grease caused by Tenant; and (e) any violation of Laws, DABS regulations, or food code by Tenant.

17.2 Landlord Indemnity. Landlord shall indemnify Tenant from losses directly caused by Landlord's gross negligence or willful misconduct, subject to Section 17.3.

17.3 Limitation of Liability. Tenant shall look solely to Landlord's interest in the Shopping Center for recovery. No member, manager, officer, employee, or agent of Landlord has personal liability. Except for Tenant's holdover, neither party is liable for consequential, punitive, or special damages.

ARTICLE 18. FORCE MAJEURE

Except for payment of Rent, maintenance of insurance, surrender obligations, and exercise of option and notice deadlines, performance is extended for delays caused by events beyond reasonable control (labor disputes, casualty, war, terrorism, governmental action, utility failures, shortages, public-health emergencies, permit delays despite diligent pursuit).

ARTICLE 19. CASUALTY

If restoration cannot reasonably be completed within one hundred eighty (180) days, either party may terminate on thirty (30) days' notice. Otherwise, Landlord shall restore the Premises shell and Tenant shall restore its interior, with Base Rent and Additional Rent abating proportionately while the Premises are untenantable. If casualty occurs in the last twenty-four (24) months of the Term, either party may terminate.

ARTICLE 20. CONDEMNATION

If all or a material portion of the Premises is taken, this Lease terminates as to the taken portion with equitable rent adjustment. Landlord receives the award for real property; Tenant may pursue a separate award for moving costs, trade fixtures, and business damages to the extent permitted by law and not reducing Landlord's award.

ARTICLE 21. SURRENDER AND HOLDOVER

21.1 Surrender. On or before the Expiration Date, Tenant shall surrender per Exhibit B, having completed grease/oil/refrigerant decommissioning, removed FF&E and required alterations, repaired damage, surrendered keys, fobs, and POS credentials, and terminated utility accounts as directed.

21.2 Holdover. Holdover rent equals one hundred fifty percent (150%) of the prior month's Rent for the first thirty (30) days and two hundred percent (200%) thereafter, plus all damages and costs (including liability to a succeeding tenant).

ARTICLE 22. EVENTS OF DEFAULT

Events of Default include: (a) Rent unpaid five (5) days after written notice past due; (b) failure to maintain insurance, Security Deposit, or Guaranty; (c) closure of the Premises in violation of Section 5.2; (d) loss or suspension of liquor license for more than sixty (60) days; (e) repeated failure (more than twice in any twelve-month period) to maintain grease/hood/fire-suppression service per Section 4.2 and 15.3; (f) unauthorized transfer; (g) liens not released within thirty (30) days; (h) failure to deliver required documents; (i) insolvency or bankruptcy not dismissed within sixty (60) days; (j) material breach of exclusive/co-tenancy provisions; (k) misrepresentation; and (l) failure to perform any other covenant within thirty (30) days after notice (subject to extension for diligent cure).

ARTICLE 23. REMEDIES

23.1 Remedies. Landlord may exercise all rights and remedies at law and in equity, including termination, reletting, deficiency damages, application of the Security Deposit, draws on the Guaranty, cure at Tenant's expense, and injunctive relief, subject to commercially reasonable mitigation as required by Utah law.

23.2 Cumulative; No Waiver. Remedies are cumulative and not exclusive.

23.3 Attorneys' Fees. Prevailing party is entitled to reasonable attorneys' fees and costs.

ARTICLE 24. BROKERS

Landlord and Tenant represent they have dealt with no brokers in this transaction except the Brokers named in Article 1. Landlord shall pay Tenant Broker under a separate commission agreement.

ARTICLE 25. MISCELLANEOUS

25.1 Governing Law; Venue. Utah law governs. Venue is exclusively in the state and federal courts in Salt Lake County, Utah.

25.2 Notices. In writing, by personal delivery, certified mail (return receipt requested), or overnight courier, to the Article 1 addresses.

25.3 Entire Agreement; Amendment. This Lease (including Exhibits) is the entire agreement; amendments require a writing signed by both parties.

25.4 Authority. Each signatory is authorized to bind its party.

25.5 Counterparts; Electronic Signatures. Permitted.

25.6 Severability. Unenforceable provisions are severable.

25.7 Waiver of Jury Trial. Mutual waiver to the maximum extent permitted by law.

25.8 Time of the Essence. Time is of the essence.

25.9 OFAC. Each party is not on any U.S. government prohibited-party list.

25.10 Survival. Indemnity, environmental, grease/oil, surrender, holdover, attorneys' fees, percentage-rent reconciliation, and CAM/Tax/Insurance reconciliation obligations survive expiration or termination.

25.11 Financial Statements. Tenant shall deliver financial statements annually within one hundred twenty (120) days of fiscal year end, including a sales summary by location, subject to confidentiality.

25.12 Recording. Neither party shall record this Lease, but the parties may record a mutually approved short-form memorandum.

25.13 Trade Name; Marks. Tenant's license to use its Trade Name and marks within the Premises is limited to the Permitted Use and to advertising the Premises. Landlord may use Tenant's name and logo in Shopping Center marketing materials in customary form and quality.

ARTICLE 26. SIGNATURES

IN WITNESS WHEREOF, Landlord and Tenant have executed this Lease as of the Effective Date.

LANDLORD:

BEEHIVE REALTY TRUST, LLC, a Utah limited liability company

By: ____

Name: Cordelia P. Whitcombe

Title: Managing Director, Leasing

TENANT:

SALTFLATS TACOS & MEZCAL CO., LLC, a Utah limited liability company

By: ____

Name: Camila V. Esquivel

Title: Managing Partner

GUARANTOR:

CAMILA V. ESQUIVEL, an individual

____

ARTICLE 27. RENEWAL OPTION

27.1 Grant. Provided no uncured Event of Default exists and Tenant is operating the Premises consistent with Section 5.2 at the time of exercise and on the renewal commencement date, Tenant has one (1) option to renew for a five (5) year Renewal Term on the same terms, except Base Rent shall be Fair Market Rent.

27.2 Notice. Tenant shall exercise by written notice delivered not earlier than fifteen (15) months and not later than twelve (12) months before the Expiration Date. Time is of the essence.

27.3 FMR. Fair Market Rent shall account for comparable end-cap restaurant space in Holladay/Cottonwood Heights, with at-grade patio, recent tenant credit, and concessions actually offered in the market for renewals (not new leases). If the parties do not agree within thirty (30) days, each shall select a qualified MAI appraiser and the two shall select a third; FMR shall be determined by majority vote within sixty (60) days.

EXHIBIT A

Site Plan & Premises

The Premises consist of end-cap Suite 105 of the Aspen Bench Marketplace, together with the exclusive use of the outdoor dining patio shown below. The "Required Co-Tenant" is the anchor specialty grocer (Wildwood Market) shown on the left of the depiction. The depiction is illustrative; in the event of a measurable discrepancy, the RSF in Article 1 controls.

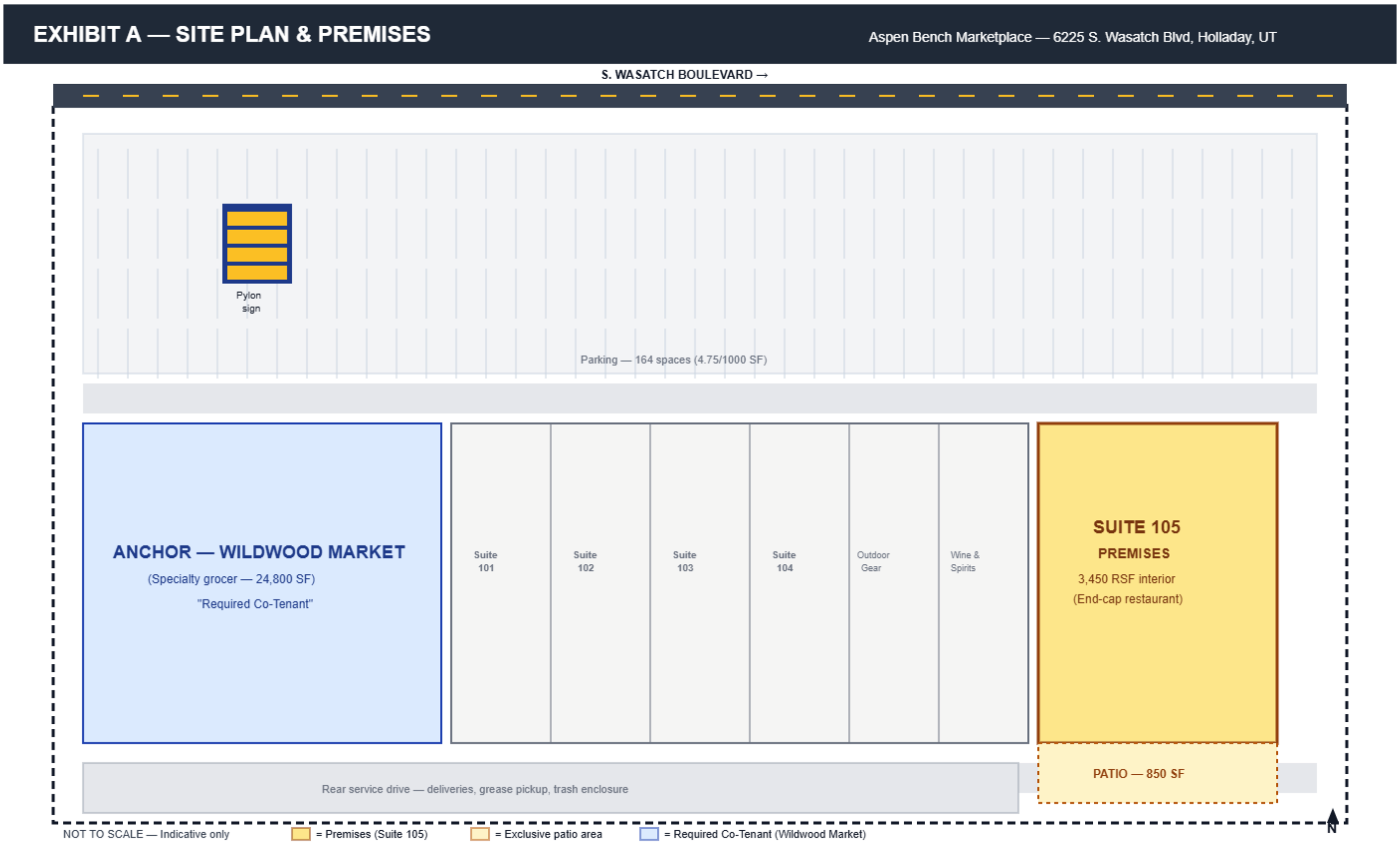

EXHIBIT B

Surrender Requirements

On or before the Expiration Date, Tenant shall, at its sole cost:

1. Decommission and remove all kitchen equipment, hood and exhaust system, walk-in coolers and freezers, bar equipment, FF&E, POS, and signage.

2. Pump out, clean, and certify the grease interceptor; provide the most recent inspection and pumping records to Landlord.

3. Decommission refrigeration and recover refrigerants in compliance with EPA requirements; deliver refrigerant-recovery records.

4. Patch and seal all roof penetrations resulting from Tenant's hood, exhaust fan, and HVAC installations; deliver a roofing-contractor letter confirming weather-tight condition (or, at Landlord's option, leave penetrations covered to Landlord-approved standard).

5. Repair or replace damaged flooring, wall finishes, and ceiling tiles; deliver the Premises broom-clean.

6. Remove all signage (storefront, blade, monument panel, pylon panel, window graphics) and repair damage.

7. Remove the patio furniture, planters, heaters, and any tenant-installed patio improvements; restore the patio surface to original delivery condition (excluding ordinary wear).

8. Surrender keys, fobs, alarm codes, POS credentials, and BMS credentials.

9. Terminate utility accounts as directed by Landlord.

EXHIBIT C

Rules and Prohibited Uses

Rules.

1. Tenant shall use the rear loading drive for all deliveries, trash, recycling, and used cooking oil pickup. No deliveries through the storefront entry.

2. Trash, recycling, and grease containers shall be kept inside the designated trash enclosure. No items shall be left in the common areas at any time.

3. Smoking is prohibited under any awning, within fifteen (15) feet of any storefront, and on the patio. Tenant's employees shall use designated smoking areas only.

4. Storefront windows shall be kept clean and unobstructed. Window signage is permitted only in accordance with Exhibit E.

5. Tenant shall keep the storefront, patio, and immediately adjacent sidewalk clean and swept at least twice daily.

6. Music and amplified sound from the patio shall not be audible at the property line.

7. No solicitation, distribution, or sale of merchandise outside the Premises (including in the common areas or parking lot) is permitted.

Prohibited Uses (general).

A. Pawn shops, payday lenders, check-cashing, smoke or vape shops, head shops, gun shops, or massage parlors.

B. Adult entertainment, gambling, cannabis retail or consumption.

C. Auto sales or repair.

D. Industrial uses; warehouse uses; storage other than supportive of the retail use.

E. Operations that primarily serve takeout from a drive-through window.

EXHIBIT D

Tenant Contact Information

Tenant shall maintain the following primary contact for all operational, emergency, insurance, accounting, and licensing matters under this Lease, and shall provide written notice of any change within ten (10) business days.

Field	Information
Name	Camila V. Esquivel
Title	Managing Partner
Business Phone	(801) 555-0317
Mobile / After-Hours Phone	(801) 555-0334
Email	cesquivel@saltflatstacos.example
Mailing Address	Saltflats Tacos & Mezcal Co., LLC, Suite 105, 6225 South Wasatch Boulevard, Holladay, UT 84121
24/7 Emergency Line	(801) 555-0309 (kitchen manager on duty)

EXHIBIT E

Sign Specifications

Storefront Sign. One (1) channel-letter or halo-lit dimensional sign on the primary storefront fascia, maximum 1.5 SF per linear foot of storefront, mounted within the Landlord-designated sign band. Lettering and logo color must be submitted for Landlord's aesthetic approval consistent with the Aspen Bench design standards.

Blade Sign. One (1) projecting blade sign at the entry, maximum 6 SF per side, mounted at minimum 8' clearance.

Pylon / Monument Panel. One (1) panel position on the Center's pylon sign at Wasatch Boulevard; tile to be fabricated by Landlord's sign vendor at Tenant's cost (approx. $1,850).

Window Graphics. Permitted to a maximum coverage of 25% of the glazed area, with subject matter limited to the Trade Name, hours, and one menu/announcement panel; no temporary paper signs except for one (1) holiday/seasonal display not exceeding 30 days.

Patio Signage. One (1) freestanding A-frame or sandwich board sign on the patio is permitted during operating hours and shall be removed nightly.

Permits; Removal. Tenant obtains all permits at its cost. Tenant shall remove all signage at the Expiration Date and repair any damage to fascia, masonry, and storefront glazing.

EXHIBIT F

Confirmation of Commencement Date

Reference is made to that certain Retail Restaurant Lease dated July 17, 2026 (the "Lease") between Beehive Realty Trust, LLC, as Landlord, and Saltflats Tacos & Mezcal Co., LLC, as Tenant. Landlord and Tenant confirm:

Item	Confirmed
Delivery Date	_______________, 2026
Commencement Date	_______________, 2026
Rent Commencement Date	December 1, 2026
Expiration Date	November 30, 2036
Premises RSF	3,450 (plus 850 SF exclusive patio)
Tenant Proportionate Share	10.00%
Landlord Delivery in Required Condition	☐ Yes ☐ Yes, subject to attached punch list ☐ No

EXHIBIT G

Work Letter & Tenant Improvement Allowance

1. **Landlord Work / Delivery Condition.** Landlord shall deliver the Premises in "warm vanilla shell" condition: (a) demising walls drywall-finished and primed; (b) concrete slab in good condition; (c) suspended grid ceiling at agreed elevation, or open-to-deck; (d) base-building HVAC sized for restaurant use of the Premises (minimum 1 ton per 150 SF interior), with VAV control to Tenant's thermostat; (e) one (1) ADA-compliant restroom rough-in (Tenant to add fixtures and finishes); (f) 200-amp three-phase electrical service to a panel within the Premises; (g) natural gas service to a stub within the Premises; (h) water and sewer connections; (i) one (1) 8-foot section of indirect-waste grease line stubbed for Tenant's grease interceptor connection; (j) storefront glazing and entry doors installed and operable; (k) roof in good repair with a current ten-year warranty in place; and (l) patio slab poured to grade with railing structurally supported.

2. **Tenant's Work.** Tenant's Work includes kitchen build-out, hood and make-up air, supplementary HVAC, fire-suppression upgrades, grease interceptor sizing if larger than the line installed by Landlord, dining-room and bar finishes, FF&E, patio improvements (furniture, heaters, planters, surface treatments), exterior and interior signage, low-voltage cabling, audio, security, and POS.

3. **Tenant Improvement Allowance.** Landlord shall provide a one-time TI Allowance of $50.00 per RSF of interior space ($172,500.00 total). The Allowance is payable in arrears in not more than three (3) draws after substantial completion of the work covered by the draw, against (a) paid invoices, (b) conditional lien waivers (with final unconditional waivers required for the final draw), (c) photographs of completed work, and (d) the General Contractor's sworn affidavit. Unused Allowance is forfeited 12 months after the Commencement Date. The Allowance may not be applied to FF&E (except for built-in millwork and the hood) without Landlord's consent.

4. **Plans and Approvals.** Tenant shall submit its plans, specifications, and contractor list to Landlord for approval (not to be unreasonably withheld) before commencing work. Landlord's review fee is waived.

5. **Outside Date; Tenant Delay.** See Section 6.5 of the Lease.

EXHIBIT H

Limited Personal Guaranty

1. Guaranty. For value received, Camila V. Esquivel ("Guarantor") absolutely and unconditionally guarantees the payment and performance of Tenant's obligations under the Lease, subject to the cap and burn-off in Sections 2 and 3 below.

2. Cap. Guarantor's liability is capped at, in the aggregate, eighteen (18) months of Base Rent plus Additional Rent measured at the time of Default (a "rolling 18-month cap"), plus reasonable attorneys' fees and costs of collection. Damages for environmental obligations, holdover, and indemnity claims arising from Tenant's willful misconduct are not subject to the cap.

3. Burn-Off. Provided no Event of Default has occurred during the prior twenty-four (24) months and Tenant has timely paid all Rent (including Percentage Rent) when due, this Guaranty shall terminate effective on the sixtieth (60th) full calendar month following the Rent Commencement Date.

4. Independent Obligation; Waivers. This Guaranty is an independent obligation; Guarantor waives diligence, presentment, protest, notice of acceptance, notice of default (other than as specifically required), and the requirement that Landlord proceed first against Tenant. Customary waivers consistent with Utah law are incorporated.

5. Notice; Financial Statements. Notices to Guarantor shall be sent to the Tenant Notice Address with a copy to the Guarantor's personal address provided separately at execution. Guarantor shall deliver an annual personal financial statement, subject to confidentiality, on Landlord's request not more than once per year.

6. Governing Law. Utah law governs. Venue is exclusively in the state and federal courts in Salt Lake County, Utah.

EXHIBIT I

Utah-Specific Provisions

I.1 Governing Law. Utah law governs. The State of Utah does not impose a state sales or rent tax on commercial real property rent as of the Effective Date; if any such tax is later imposed and is required to be paid by tenants, Tenant shall pay such tax on Rent.

I.2 DABS / Liquor. Tenant's rights to serve alcohol depend on, and are subject to, the policies and rules of the Utah Department of Alcoholic Beverage Services. Tenant shall not commence alcohol service until all required DABS approvals are issued. Tenant acknowledges that DABS regulations include, among others, food primary service ratios, signage, employee training, minor access, and bar/dining separation requirements applicable to the licensee class Tenant selects.

I.3 Sales Tax. Tenant shall collect and remit Utah and local sales taxes, restaurant taxes, and any tourism, recreation, or transient room taxes that may apply to Tenant's sales.

I.4 Mechanics' Liens. Tenant shall keep the Shopping Center free from any mechanics', materialmen's, or similar liens arising out of Tenant's work, and shall cause any such lien to be released or bonded within thirty (30) days. Landlord may post notices of non-responsibility under Utah Code §38-1a et seq.

I.5 Stormwater. Tenant shall comply with Holladay City and Utah Division of Water Quality stormwater requirements, including grease/oil pollution prevention practices for any patio washdown.

I.6 Broker Disclosure. Tenant Broker represents Tenant; Landlord Broker (Beehive Realty Trust, LLC, in-house) represents Landlord, consistent with Utah Division of Real Estate agency disclosures.

I.7 Accessibility (ADA / Utah). Tenant is responsible for ADA and Utah accessibility compliance with respect to its operations and the interior of the Premises and patio. Landlord is responsible for accessibility in the Shopping Center common areas.

I.8 Smoking; Clean Air Act. Tenant shall comply with the Utah Indoor Clean Air Act and all related rules, including signage and smoking-restriction requirements.

EXHIBIT L

Exclusive Use & Continuous Operation

L.1 Required Operating Hours.

Day	Minimum Hours
Monday	Closed permitted
Tuesday – Thursday	11:00 a.m. – 9:00 p.m.
Friday	11:00 a.m. – 10:00 p.m.
Saturday	10:00 a.m. – 10:00 p.m. (brunch from 10:00 a.m.)
Sunday	10:00 a.m. – 9:00 p.m.

L.2 Existing Lease Carve-Outs (Exclusive Use). Tenant acknowledges that, as of the Effective Date, Suite 102 of the Shopping Center is leased to "Coppertree Grill & Tap House," whose menu includes incidental Latin-inspired dishes (e.g., street corn, two taco offerings). Coppertree's existing rights survive Tenant's exclusive in Section 5.9; provided that any material change in concept by Coppertree to a primarily Mexican/Latin American or mezcal-/tequila-forward concept shall be a violation of Section 5.9.

L.3 Remedy for Exclusive Violation. Upon a Landlord violation of Section 5.9 that continues uncured for ninety (90) days after Tenant's written notice, Tenant's sole remedies are: (a) abatement of fifty percent (50%) of Base Rent during the period of continued violation; and (b) if the violation continues for more than twelve (12) consecutive months, the right to terminate this Lease on sixty (60) days' written notice. Tenant shall have no right to consequential damages for an exclusive violation.

EXHIBIT M

Co-Tenancy

M.1 Required Co-Tenant. The "Required Co-Tenant" is Wildwood Market (or a Comparable Replacement). A "Comparable Replacement" means a national or regional specialty grocer occupying at least 18,000 RSF of the anchor space, operating with reasonably comparable customer traffic, hours, and quality.

M.2 Occupancy Threshold. The Shopping Center must remain at least seventy percent (70%) occupied (measured by RSF actually open and operating) for more than sixty (60) consecutive days.

M.3 Cure Period; Substitute Rent. If either (a) the Required Co-Tenant ceases operating for more than ninety (90) consecutive days, or (b) the Occupancy Threshold is breached for more than sixty (60) consecutive days, Tenant shall be entitled to pay, in lieu of Base Rent, the lesser of (i) two percent (2%) of Gross Sales or (ii) fifty percent (50%) of Base Rent then in effect ("Substitute Rent"). Substitute Rent shall begin on the first day after the applicable threshold is breached.

M.4 Conditional Termination. If the condition giving rise to Substitute Rent continues for twelve (12) consecutive months, Tenant may terminate this Lease on sixty (60) days' written notice, provided that Landlord may avoid termination by either (a) restoring the Required Co-Tenant or installing a Comparable Replacement during the notice period or (b) restoring the Occupancy Threshold during the notice period.

M.5 No Stacking. Tenant's rights under this Exhibit M are not cumulative with the rent abatement available for an exclusive violation under Exhibit L; Tenant shall elect one remedy at a time.

APPENDIX 1

Deal Summary and Drafting Notes

Description.

A ten-year, end-cap retail restaurant lease in the Aspen Bench Marketplace, a 34,500 SF lifestyle retail/dining center in Holladay, Utah, anchored by Wildwood Market. Tenant is a Utah LLC operating a mezcal- and tequila-forward modern taqueria, and will build out a full kitchen with hood, grease interceptor, and an 850 SF outdoor dining patio. Structure features a four-month free-rent period, biennial step rents, percentage rent at 6% over the natural breakpoint, a $50/SF tenant improvement allowance, a limited personal guaranty with five-year burn-off, an exclusive-use covenant, and a co-tenancy clause tied to the anchor grocer and a 70% occupancy threshold.

Archetype.

Multi-tenant retail end-cap restaurant lease with full retail covenants (continuous operation, required operating hours, exclusive use, co-tenancy, percentage rent, marketing fund) and restaurant-specific operating provisions (hood, grease, refrigerant, alcohol).

Key Drafting Notes.

- Percentage Rent at 6% over a natural breakpoint; Gross Sales definition includes third-party delivery at gross.
- Continuous operation backed by an Event of Default for "going dark," modulated by the holiday/Force Majeure carve-outs.
- Exclusive Use carves out the existing Coppertree Grill & Tap House and includes a calibrated remedy (50% rent abatement, then 12-month termination right).
- Co-Tenancy keyed to Wildwood Market AND a 70% occupancy threshold; Substitute Rent of the lesser of 2% Gross Sales or 50% of Base Rent; 12-month conditional termination right.
- Liquor license is operationally critical; the Lease ties license loss to default and incorporates DABS requirements.
- Personal guaranty is limited to a rolling 18 months and burns off in year 5 — a market-typical structure.
- Restaurant maintenance (hood, grease, refrigerant) is explicit, contracted, and audit-supported.
- Patio is a defined exhibit area with separate operating-hours restrictions.

Items Intentionally Omitted.

Letter of credit; corporate guaranty; relocation right; ROFO/ROFR; expansion option; drive-through; sustainability addendum; landlord lien waiver (equipment financing addressed at request through standalone agreement); ground-lease provisions.

Post-Execution Calendar.

Date	Action
Jul 17, 2026	Lease fully executed; first payments, Security Deposit, Guaranty, and COIs due within 5 business days.

Aug 1, 2026	Commencement Date; Abatement Period begins; possession to Tenant; Tenant's Work begins.
Sep 30, 2026	Outside Date for Landlord delivery in required condition.
Dec 1, 2026	Rent Commencement Date; first $12,075.00 Base Rent installment due.
Apr 30, 2027	Latest delivery of 2026 CAM/Tax/Insurance reconciliation (150 days).
Mar 1, 2027	Latest delivery of Lease Year 1 Percentage Rent reconciliation (90 days after Lease Year end; first full LY ends Nov 30, 2027).
Months 54–66	"Mid-term refresh" of paint, finishes, and patio furniture per Section 13.2.
Dec 1, 2031	Personal Guaranty burn-off at month 60 if no Default in prior 24 months.
Sep 1, 2035 – Nov 30, 2035	Renewal option window (12–15 months prior to Expiration).
Nov 30, 2036	Expiration Date; surrender per Exhibit B.